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Saudi Arabia Cabinet Decision No. 143/1427
On the Approval of the Law on the Import and Management of Chemical Substances

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Amended by

Saudi Arabia Cabinet Decision No. 542/1440 dated 16/09/1440 H.;

Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H.; and

Saudi Arabia Cabinet Decision No. 154/1448 dated 07/02/1448 H.

The Cabinet,

After perusal of the document received from the Office of the Presidency of the Council of Ministers under No. (50562/B) dated 07/12/1426 H., including Telegram No. (3/2/108/D.F) dated 30/01/1423 H. of His Royal Highness the Acting Minister of Interior, concerning the Draft Regulation of the Standing Rules Governing the Import and Handling of Chemical Substances in the Kingdom;

Minutes No. (327) dated 12/10/1424 H. and No. (85) dated 11/03/1427 H., prepared by the Bureau of Experts at the Council of Ministers;

Shura Council Decision No. (72/53) dated 16/11/1426 H.; and

Recommendations No. (148) dated 19/03/1427 H. and No. (282) dated 30/05/1427 H. of the General Committee of the Council of Ministers,

Decides as follows:

The Law on the Import and Management of Chemical Substances shall be hereby approved in the form attached hereto.

A draft Royal Decree to this effect has been prepared, the text of which is attached hereto.

The Prime Minister

This Decision was published in Issue No. (4110) of Umm Al-Qura Official Gazette dated 24/07/1427 H., P. 12.

Law on the Import and Management of Chemical Substances

Article 1

The definition of "Chemical Substances" was amended by virtue of Paragraph (1) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows: to read as follows:

The following terms and expressions shall, wherever they appear in this Law, have the meanings assigned to them, unless the context requires otherwise:

The definition of "Chemical Substances" was amended by virtue of Paragraph (1) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows: to read as follows:

Chemical Substances: Chemical Substances: Any Chemical Substance in its gaseous, liquid or solid state, including chemical precursors that are used in the formulation of narcotics and psychotropic substances.

The definition of "Management of Chemical Substances" was amended by virtue of Paragraph (2) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

Management of Chemical Substances: Management of Chemical Substances: Any dealing with Chemical Substances, including Any dealing with Chemical Substances, including their production, manufacture, import, export, re-export, handling, transportation, storage, treatment, destruction and disposal.

The definition of "Competent Authority" was amended by virtue of Paragraph (3) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

Competent Authority: The authority empowered, pursuant to the provisions of this Law, to issue permits for the import, export and re-export of Chemical Substances and permits for their customs clearance.

The definition of "Chemical Waste" was amended by virtue of Paragraph (4) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows: to read as follows:

Chemical Waste: Chemical residues that must be disposed of, such as substances resulting from industrial and research operations.

Accumulated Chemical Substances: Chemical Substances stored for a prolonged period in the warehouses of their importers or handlers as determined by the Regulation.

The definition of "Hazardous Chemical Substances" was amended by virtue of Paragraph (5) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows: to read as follows:

Hazardous Chemical Substances: Chemical Substances characterised by their toxicity or explosive properties, or having other properties that may pose a risk to human or animal health or the environment.

The definition of "Implementing Regulation" was amended by virtue of Paragraph (6) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

Regulation: The Implementing Regulation of this Law.

Article 2

Article 2 was amended by virtue of Paragraph (7) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

Chemical substances may not be imported, exported or re-exported without obtaining a permit therefor from the authority legally competent pursuant to Article 3 of this Law. Such substances may not be cleared through Customs unless a customs clearance permit is submitted.

The Implementing Regulation shall specify the procedures for applying for the issuance of both permits, their prescribed forms and conditions, their validity periods, and the procedures for their renewal and cancellation.

Article 3

Article 3 was amended by virtue of Paragraph (8) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

1. Without prejudice to the competences assigned to other authorities under the applicable Laws, the following authorities shall be competent to issue permits for the import, export and re-export of Chemical Substances and permits for their customs clearance, in respect of the substances specified opposite each:

    a- Ministry of Interior: Chemical substances used in the manufacture of explosives.

    b- Ministry of Education: Chemical Substances intended for educational and research institutions.

    c- Saudi Food and Drug Authority: Chemical precursors used in the manufacture of narcotic drugs and psychotropic substances; other Chemical Substances used in the preparation or manufacture of food and drugs; pesticides relating to public health; cosmetics; medical products; and Chemical Substances required by the health sector, including non-radioactive reagents.

    d- Ministry of Environment, Water and Agriculture (the Competent Environmental Centre):

        1. Chemical Substances used in the preparation or manufacture of agricultural pesticides, soil conditioners and fertilisers, and Chemical Substances required by agricultural research centres.
        2. Chemical Substances used in water and wastewater treatment and the plants designated therefor, and Chemical Substances required by water and wastewater laboratories and research centres.
        3. Chemical substances restricted pursuant to international conventions and treaties ratified by the Kingdom in the environmental field, without prejudice to the competences of the other relevant authorities.

    e- Ministry of Energy: Chemical Substances relating to energy, including Chemical Substances intended for entities operating in the petroleum, electricity, gas and renewable-energy sectors, and Chemical Substances intended for their research and development activities.

    f- **Subparagraph (f) of Paragraph (1) of Article 3 of the Law on the Management of Chemical Substances was deleted by virtue of Clause (1) of Saudi Arabia Cabinet Decision No. 154/1448 dated 07/02/1448 H.**

    g- Ministry of Industry and Mineral Resources: Chemical Substances intended for factories and mining activities, including Chemical Substances intended for their research and development activities.

    h- King Abdulaziz City for Science and Technology: Chemical Substances intended for its research and development activities.

    Other authorities may be added, by an order of the Prime Minister, in respect of Chemical Substances intended for or required by such authorities, without prejudice to the competences of other authorities.

2. The authorities referred to in Paragraph (1) of this Article may not issue permits for the import, export or re-export of Chemical Substances, or permits for the customs clearance of substances used in the manufacture of explosives and narcotic drugs, except after reaching agreement with the Ministry of Interior and the High Commission for Industrial Security, in accordance with the Implementing Regulation.

Article 4

Article 4 was amended by virtue of Paragraph (9) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

The Competent Authorities shall provide the Ministry of Environment, Water and Agriculture (competent environmental centre) with a copy of the clearance permission they issue for the Chemical Substances upon issuance.

Article 5

The Saudi Standards, Metrology and Quality Organisation shall establish the standard specifications applicable to containers of Chemical Substances, including their type, size and colour and the labels and instructions that must be affixed thereto.

Article 6

The Ministry of Transport and the General Authority of Civil Aviation shall, each within its respective competence, issue licences for the transportation of Chemical Substances in accordance with the conditions and specifications prescribed by the Implementing Regulation.

Article 7

Article 7 was amended by virtue of Paragraph (10) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

Subject to the provision of Article (3) of this Law, the Management of Chemical Substances shall not be permissible except after obtaining a licence from the legally Competent Authority. The Regulation shall determine the Competent Authorities as well as the procedures and conditions for obtaining the licence.

Article 8

The Ministry of Interior and the High Commission for Industrial Security shall undertake the following functions:

1. Recording and monitoring all imported Chemical Substances used in the manufacture of explosives and the entities importing them.
2. Escorting trucks carrying Hazardous Chemical Substances, as specified by the Implementing Regulation, to ensure their safety on the roads.
3. Establishing protective and preventive measures against the hazards of Chemical Substances and monitoring their implementation.
4. Establishing chemical-incident response teams and ensuring that such teams receive the training and equipment necessary to perform their functions.

Article 9

Article 9 was amended by virtue of Paragraph (11) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

The Zakat, Tax and Customs Authority shall discharge the following duties:

1. Completing the required customs procedures for any consignment of Chemical Substances upon submission of its customs clearance permit.
2. Coordinating with the Competent Authorities to address any issue that obstructs or delays the customs clearance of imported Chemical Substances.
3. Informing the Ministry of Environment, Water and Agriculture (the Competent Environmental Centre), without delay, of any Chemical Substances abandoned in its custody. The Implementing Regulation shall prescribe the procedures required in this regard.

Article 10

The opening provision of Article 10 was amended by virtue of Paragraph (12) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows: to read as follows:

The Ministry of Environment, Water and Agriculture (the Competent Environmental Centre) shall undertake the following functions :

1. Coordinating with the Competent Authorities to establish a database containing the following:

    a- A record of Chemical Substances that have been granted customs clearance, the entities that imported them and the quantities thereof that have been destroyed.

    b- A record of prohibited Chemical Substances that may under no circumstances enter the Kingdom and restricted Chemical Substances that may enter the Kingdom only subject to special conditions and instructions. The Competent Authorities shall be provided with a copy of this record.

    c- All information relating to Chemical Waste, its characteristics, degree of hazard, appropriate conditions for its preservation, transportation and reuse, methods of storage, and means of disposal.
2. Regulating detection and warning systems for the hazards of chemical incidents and preparing plans for responding to emergencies affecting the environment, in coordination with the relevant authorities.
3. Issuing licences for the establishment of chemical-waste treatment plants and facilities in accordance with the standards prescribed by the Implementing Regulation, and monitoring such plants and facilities and the waste disposed of therein.

4. Preparing rules and procedures for controlling the destruction and disposal of Chemical Waste and monitoring their implementation, in conformity with the Laws and treaties relating thereto.
5. Coordinating with the relevant authorities to secure suitable sites for the destruction and burial of Chemical Substances, and supervising the establishment of landfill sites and the processes of destruction and burial.

   Paragraph (6) of Article 10 was amended by virtue of Paragraph (13) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:
6. Taking the necessary measures in respect of Chemical Substances held by entities wishing to dispose of them, immediately upon the Ministry of Environment, Water and Agriculture (the Competent Environmental Centre) being informed thereof.

Article 11

The opening provision of Article 11 was amended by virtue of Paragraph (14) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

Those in charge of managing Chemical Substances shall:

1. Complete the procedures for obtaining the customs clearance permit before or upon the arrival of the Chemical Substances in the Kingdom.
2. Take delivery of imported Chemical Substances and transport them within no more than three working days from the date of their customs clearance at the customs ports.
3. Transport Chemical Substances safely using licensed means of transport.
4. Inform the Ministry of Interior and the High Commission for Industrial Security before transporting Hazardous Chemical Substances.
5. Store Chemical Substances in places designated therefor, in accordance with the conditions and instructions prescribed by the Implementing Regulation.
6. Apply the instructions governing the safety of workers at facilities dealing with Chemical Substances.
7. Apply the standard specifications applicable to containers of Chemical Substances.
8. Refrain from using imported Chemical Substances for any purpose other than that for which they were requested without the approval of the Competent Authority.
9. Refrain from handling Chemical Substances except at places designated therefor.
10. Ensure that Chemical Substances are handled by persons qualified in the field of safety and prevention.

    Paragraph (11) of Article 11 was amended by virtue of Paragraph (15) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:
11. Periodically inform the Competent Authority and the Ministry of Environment, Water and Agriculture (the Competent Environmental Centre) of any Accumulated or expired Chemical Substances or Chemical Waste in their possession.

    Paragraph (12) of Article 11 was amended by virtue of Paragraph (16) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:
12. Dispose of Chemical Waste through a specialised facility licensed by the Competent Authority, provided that the Ministry of Environment, Water and Agriculture (the Competent Environmental Centre) is informed before the disposal of such waste, in accordance with the Implementing Regulation.

Article 12

The text of Article (12) of this Decision was amended by virtue of Saudi Arabia Cabinet Decision No. 154/1448 dated 07/02/1448 H., to read as follows:

1. The Competent Authorities shall, each within its respective competence:

   a- Monitor and inspect establishments and facilities dealing with Chemical Substances to verify compliance with this Law, its Implementing Regulation and any instructions issued in relation to Chemical Substances.

   b- Detect and document violations of this Law and prepare reports thereon. The Implementing Regulation shall prescribe the procedures for detecting and documenting violations.
2. Without prejudice to the functions of the Competent Authorities, the Ministry of Commerce shall undertake the functions stipulated in Paragraph (1) of this Article in relation to companies, establishments and commercial sales outlets engaged in the sale of Chemical Substances.

Article 13

Subparagraph (a) of Paragraph (1) of Article 13 was amended by virtue of Paragraph (17) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows: to read as follows:

1. Without prejudice to any more severe penalty prescribed by another Law, any person who violates any provision of this Law shall be subject to one or more of the following penalties:

   Subparagraph (a) of Paragraph (1) of Article 13 was amended by virtue of Paragraph (17) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows: to read as follows:

   a- A fine not exceeding SAR one million.

   b- Imprisonment for a term not exceeding five years.

   Subparagraph (c) of Paragraph (1) of Article 13 was amended by virtue of Paragraph (18) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:

   c- Prohibiting the violator from engaging in the activity in respect of which the violation was committed for a period not exceeding five years.

2. In addition to the foregoing penalties, an order may be made for the imported Chemical Substances that are the subject of the violation to be returned to their source or destroyed at the violator's expense.

3. In all cases, the violator shall be required to remedy the consequences of the violation.

   A new Paragraph (4) was added pursuant to Clause Second of Saudi Arabia Cabinet Decision No. 542/1440 dated 16/09/1440 H., as follows:

4. The judgement imposing the penalty may include an order that a summary thereof be published, at the violator's expense, in a local newspaper or through any other appropriate medium, depending on the nature and gravity of the violation committed and its impact on society, provided that publication takes place only after the judgement becomes final.

Article 14

The Bureau of Investigation and Public Prosecution shall be competent to investigate and prosecute violations of this Law.

Article 15

The Board of Grievances shall have jurisdiction to adjudicate all violations, disputes and compensation claims arising from the application of this Law.

Article 16

This Law shall not apply to:

1. Medicines.
2. Chemical substances intended for household use, as specified by the Implementing Regulation.
3. Chemical substances imported directly by the Armed Forces for military purposes.

Article 17

> ***Article 17 was amended by virtue of Paragraph (19) of Clause Second of Saudi Arabia Cabinet Decision No. 50/1443 dated 16/01/1443 H., to read as follows:***

Subject to the provisions of applicable Laws and international agreements, the Minister of Interior shall issue the Implementing Regulation of this Law within one hundred and eighty (180) days from the date of its publication, following coordination by the Ministry of Interior and the High Commission for Industrial Security with each of the following authorities, within its respective competence: The Ministry of Commerce; the Ministry of Finance (the Zakat, Tax and Customs Authority); the Ministry of Education; the Ministry of Environment, Water and Agriculture (the Competent Environmental Centre); the Ministry of Energy; the Ministry of Industry and Mineral Resources; King Abdulaziz City for Science and Technology; and the Saudi Food and Drug Authority.

Article 18

This Law shall enter into force one hundred and eighty (180) days after the date of its publication in the Official Gazette, and any provisions conflicting therewith shall be abrogated.

Notes

1. ^ [p.2] This Law was approved by virtue of Saudi Arabia Royal Decree No. M38/1427 dated 16/06/1427 H.